

INTA Practice Guides Report

Trademark Enforcement Guide

Colombia

SINGLE JURISDICTION REPORT

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I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter.
- Before initiating an infringement proceeding in this jurisdiction, a party must attempt to settle with the other party. Attempting to settle is a prerequisite to initiating an infringement proceeding, if no preliminary injunctions are requested.
- Before initiating an infringement proceeding, a party must engage in mediation or other alternative dispute resolution proceeding with the other party. Attempting mediation is a prerequisite to initiating an infringement proceeding, if no preliminary injunctions are requested.
- Before initiating an infringement proceeding, a party is required to take the following actions: Attempting to settle is a prerequisite to initiating an infringement proceeding, if no preliminary injunctions are requested.
- The name for such a letter is: a cease and desist letter (Carta Prejudicial or Carta de Advertencia).
- Such a letter should be sent at the following time: when the sending party is interested in concluding the dispute. A suit could be initiated even before sending the letter.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark; an attorney for the licensee of the mark.
- Specific rules/customary practices applicable to such letters include: the reasonableness of the demand; allowing sufficient time for response.
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; consequences of not responding within the time set out in the letter; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark (usually part of the negotiation).
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: none.
- The length of time within which to allow the recipient to respond to the letter that is considered reasonable is: 15 days.
- The following factors are taken into consideration when determining the length of time that is considered reasonable: the normal time it would take to study the matter and respond.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: may help ascertain whether alleged infringer has meritorious defenses; results

may be achieved more quickly and at lower cost; may provide a basis for a claim of willful infringement; may lead to negotiations and avoid the need to commence proceedings.

- The potential consequences of sending such a letter include: unlawful restraint (This would include proceedings for unjustifiable threat of infringement, usually when the letter is sent without being duly supported by evidence.); loss of the element of surprise, giving infringer time and opportunity to prepare a defense.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: the claim may be barred by time limits or statute of limitations; loss of credibility in enforcement actions.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is more than one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark (see below). There are two judicial bodies. The first is a civil circuit court and the second is the Superintendence of Industry and Commerce in the city of Bogotá. The complainant should decide in advance in which authority the infringement action will be pursued.
- The court system or administrative body that most frequently hears claims for infringement of a registered trademark is: The most frequently used authority for trademark infringement actions is the Superintendence of Industry and Commerce, since it is a specialized court with specific knowledge on trademark infringements and the proceeding is required to be resolved within a year from the date the admission of the action is served to the respondent.
- The other court system or administrative body that can also hear claims for infringement of a registered trademark is: a civil circuit court.
- The following factors determine which court or administrative body can hear a case: the plaintiff chooses where to initiate the action. If the plaintiff chooses to proceed before a specialized court, then that court would be the Superintendence of Industry and Commerce (Superintendencia de Industria y Comercio). However, if the plaintiff is choosing based on the domicile of the defendant or the place where the infringement occurred, then the court could be the Superintendence of Industry and Commerce, if the domicile of the defendant or the infringement is in Bogotá, or the civil circuit court of the competent jurisdiction in any other part of Colombia. As noted above, the authority most frequently chosen to hear trademark infringement actions is the Superintendence of Industry and Commerce, because it is a specialized court with specific knowledge regarding trademark infringements, and the proceeding must be resolved within a year from the date on which the admission of the action is served to the respondent. A party might choose to proceed with the civil circuit court for the following reasons: the plaintiff is not domiciled in Bogotá and the domicile of the defendant or the place where the infringement occurred is not in Bogotá; the action might have delicate procedural issues; or the Superintendence of Industry and Commerce has clearly favored a certain position that might be at issue in the case.
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; an exclusive licensee (the owner/registered proprietor must join in the proceedings); a non-exclusive licensee (the owner/registered proprietor must join in the proceedings).
- If there is more than one registered proprietor/owner, they need not all join in instituting the proceedings.
- Trademark infringement proceedings are decided by a single judge with no jury.

- The time limit for initiating trademark infringement proceedings is: two years from the date on which the rightful owner had knowledge of the infringement or five years since the last infringement act.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments) (Evidence must be filed with the claim; no further evidence may subsequently be filed.); filing of reply/defense to claim (Evidence must be filed with the response; no further evidence may subsequently be filed); filing of counterclaim; oral hearing (The proceedings comprise two hearings if possible (when no further evidence has to be decreed). The first hearing includes an attempt to mediate, and continues with the decree and recollection of evidence. The second hearing begins with the gathering of the remaining evidence; if no further evidence is necessary, the closing arguments are presented and the decision is issued.); trial (This is a hearing in which all decreed evidence is adduced. It ends with the closing arguments and the decision.); judgment/decision (The decision is part of the oral hearing or the trial, depending on the evidentiary stage.).
- The average amount of time from the instituting of infringement proceedings through the trial/final hearing is: between six months and one year.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: Issuance of judgment occurs immediately at the end of the trial/hearing or at the end of the oral hearing, depending on the evidence requested, filed and decreed.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: unfair competition statute: if there is confusing similarity and the unregistered trademark is currently participating in the market. However, there has to be enough evidence regarding the existence and recognition of the unregistered trademark, of the confusion, and of the participation in the market of both the infringer and the unregistered trademark.
- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right.
- If there is more than one owner of an unregistered mark, they need not all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.
- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time. However, infringement proceedings must be instituted within 10 days from the time an injunction is decreed.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- The statutory or court-determined deadline for seeking an ex parte injunction is: two years from the date on which the rightful owner had actual knowledge of the infringement or five years since the last infringement act.
- A delay in applying for an ex parte injunction after becoming aware of the alleged

infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: The perception of urgency is lost.

- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to prevent irreparable injury; to protect the public interest.
- The strategic benefits of obtaining an ex parte injunction include: it may put an end to the infringement and litigation quickly; putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; ensuring the availability of compensation for damages; getting an assessment of the merits by the court; reducing potential damage caused by infringement.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; early adverse determination.
- An ex parte injunction remains in place: until further order by the court.
- The defendant is notified of the grant of an ex parte injunction: by the court. The court issues the writ that must be served on the defendant. The writ must be sent to the defendant by the plaintiff.
- The procedure for applying for an ex parte injunction includes the following: motion; supporting affidavits or declarations; supporting documentary evidence; order; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction.
- The factors considered in the granting of an ex parte injunction are: balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; whether the status quo should be preserved; urgency; timeliness with which plaintiff sought the injunction.
- The following forms of evidence are admissible in support of an ex parte injunction application: written witness statements; documents; affidavits; samples of infringing product(s).
- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; forfeit its bond, which is paid to the defendant.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: less than USD 10,000.
- The costs of an ex parte injunction are recoverable as follows: The court decides the amount or percentage at the end of the infringement action.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): between 2 and 10 days.
- In an ex parte proceeding, a party may not request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a “search and seizure order”).
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).
- The grant of an ex parte injunction can be appealed. However, the injunction will have effect from the time it is decreed, even if it is appealed.
- Appeal of a decision granting an ex parte injunction cannot be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision denying an ex parte injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are available to claimants seeking emergency relief.
- When applying for an interim inter partes injunction, it is not necessary to institute infringement proceedings at the same time.
- The types of interim inter partes injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- The deadline for seeking an interim inter partes injunction is: two years from the date on which the rightful owner had actual knowledge of the infringement or five years since the last infringement act.
- A delay in applying for an interim inter partes injunction can prevent the applicant from obtaining the desired relief under the following circumstances: the infringing goods are already sold; or the infringer becomes insolvent or sells his/her property.
- The purpose of an interim inter partes injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to prevent irreparable injury; to protect the public interest.
- The strategic benefits of obtaining an interim inter partes injunction include: it may put an end to the infringement and litigation quickly; putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of compensation for damages; reducing potential damage caused by infringement.
- The risks of seeking an interim inter partes injunction (if it is not granted) are: increased costs of the proceedings; potential for a damages claim under a bond or a cross-undertaking (i.e., an undertaking in damages).
- An interim inter partes injunction remains in place: until further order by the court.
- The procedure for applying for an interim inter partes injunction includes the following: motion, with notice to all parties; supporting documentary evidence; responsive memorandum/points and authorities of law; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: the potential damage/losses to the defendant caused by an improvidently entered injunction; the value or importance of the trademark to the plaintiff.
- The factors considered in the granting of an interim inter partes injunction are: whether the status quo should be preserved; the public interest favors entry of the injunction; urgency.
- The following forms of evidence are admissible in support of an interim inter partes injunction application: written witness statements; documents; affidavits; samples of infringing product(s).
- If the court later finds that the interim inter partes injunction was granted in error, the applicant will be required to: compensate the defendant for damages suffered from the injunction; forfeit its bond, which is paid to the defendant.
- The cost of obtaining an interim inter partes injunction, including attorney fees and court costs (but excluding the cost of a bond), is approximately: between USD 10,000 and 50,000.
- The costs of an interim inter partes injunction are recoverable as follows: The court decides the amount or percentage at the end of the infringement action.
- It takes approximately the following length of time to obtain an interim inter partes injunction (counting from the filing of the application to the issuance of the injunction): between 30 and 90 days.
- In an interim inter partes proceeding, a party may not request an order to enter the

premises of another party to search for property/documents/items that may become evidence (i.e., a “search and seizure order”).

- In an interim inter partes proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a “freezing order” or “freezing injunction”).
- The determination on an application for an interim inter partes injunction can be made into a final decision on the merits (i.e., an interim inter partes injunction can be made permanent).
- The hearing on an interim inter partes injunction cannot be consolidated with the trial or final determination on the proceeding. An interim inter partes injunction is not decided on in a hearing; the decision is always made in a written proceeding.
- The grant of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the grant of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision granting an interim inter partes injunction cannot be expedited.
- The denial of an interim inter partes injunction can always be appealed without waiting for final disposition of the case.
- Further appeal of the denial of an interim inter partes injunction is always possible without waiting for final disposition of the case.
- Appeal of a decision denying an interim inter partes injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — C. Standards for Obtaining Inter Partes and Ex Parte Injunctions

- The standard for obtaining an interim inter partes injunction is the same as the standard for obtaining an ex parte injunction.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for: determination of preliminary issue by trial or hearing (only if the interim application refers to statute of limitations and/or res judicata).

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings can be expedited through an early trial or hearing on a preliminary issue under the following circumstances: if the preliminary issue is statute of limitations or res judicata.
- Trial or hearing of a preliminary issue can be requested by the following parties: defendant.
- The applicant for trial or hearing of a preliminary issue must: file a memorandum containing the appropriate facts, arguments and legal support.
- For the court to grant a trial or hearing of a preliminary issue, the following conditions must be met: It must be timely and duly requested by the defendant and supported with convincing evidence.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including

samples/photos of allegedly infringing items);expert evidence;oral testimony;survey evidence;an order to enter the premises of another party to search for property/documents/items that may become evidence ("search order" or "search and seizure order").

- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings:documentary evidence;expert evidence;oral testimony;survey evidence.
- A claimant must present or give notice of any evidence on which it will rely at the commencement of the proceedings. For the claimant, all evidence must be filed and/or requested with the lawsuit. In case the defendant argues an exception, the claimant would be granted a second opportunity to file and/or request further evidence referring to the exception. Evidence is decreed at the evidentiary stage, which usually takes place during the first hearing.
- A defendant must present or give notice of any evidence on which it will rely at the time of the initial response to the claim. For the defendant, evidence must be filed and/or requested with the response.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings:at the request of the tribunal (ex officio, or when the other party has requested an order from the tribunal to proceed in that regard).

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness statements (including, e.g., affidavits, depositions, or statutory declarations); oral testimony of witnesses; deposition; documents; surveys; physical objects; expert testimony;Evidence may be presented at this stage only if it has been previously requested with the lawsuit or the response.
- It is possible to introduce surveys in evidence for the following issues:secondary meaning/acquired distinctiveness;whether a mark is famous or well known;likelihood of confusion;dilution;genericness;functionality.
- The use of survey evidence is subject to the following requirements: It must be conducted by an authorized and recognized institution (company) that is independent of the parties.
- The length of an average trial or final hearing in a civil action for trademark infringement is: two to three hours for a final hearing.
- The nature of the proceedings is:inquisitorial, i.e., the decision maker controls the proceedings and the parties and their representatives have limited power.
- A trial or final hearing includes the following:introduction by judges;examination of witnesses;closing argument by counsel for each party;decision.
- Witnesses are examined by:the judge;the lawyers.
- As part of trial preparation, the parties do the following:provide draft findings and conclusions if the proceeding is to be decided by a judge;submit marked exhibits;provide stipulations of fact.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed down after trial or final hearing: The decision will be handed down within the final hearing; if this is not possible, the judge will have 10 days to issue a written decision.
- The decision may be appealed within the following time frame: If the decision is issued during the hearing, the parties would have to appeal immediately. If the

decision is issued in writing, the parties would have three days to appeal, once the decision is duly served.

- Appealing a decision is of right; no permission is needed. However, the judge will decide whether the appeal is appropriate and according to the governing law in determining whether to allow it to proceed.
- There is only one court to which an initial appeal can be made, which is: The appeal is filed before the judge who initially decided the case, and said judge will refer the proceeding to the hierarchical and functional superior. In trademark infringement actions, the appeal court is the Superior Tribunal (court of appeals).
- The appeal court reviews: both the facts of the case and legal issues (limited to what the parties have appealed).
- Further appeal is not possible.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: the time set forth by the judge.
- A judgment may be enforced by way of the following proceeding(s): an executory process.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees; court fees; expert fees; bond or security for costs; costs incurred by a party or its witnesses (for travel, food, lodging or other expenses).
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: between USD 20,000 and 50,000.
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.
- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: less than 25 percent.
- Attorney fees are assessed using the following method(s): a fixed fee schedule.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff is not required to provide security for any costs that may eventually be awarded against it.
- A defendant is not required to provide security for costs after proceedings are initiated.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement: accounting of defendant's profits and actual damages; default compensation, when requested in the lawsuit.
- Actual damages are assessed using the following methods: lost profits of plaintiff; damages to plaintiff; constructive license fee/reasonable royalty.
- Where both damages and an accounting of profits are available and a party proves both, the party will receive both.
- Determination of the type and amount of remedy is part of the trial on liability.
- The following non-monetary remedies are available for trademark

infringement;injunctions;delivery up of infringing labels, packaging or products;destruction;disposal;removal or obliteration;public dissemination of judgment;recall of infringing products;corrective advertising;identification of supplier.

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